IDLF INTERNATIONAL DATA LAW FORUM

18 - 19 JULY 2024
THE HAGUE MARRIOTT HOTEL
NETHERLANDS
www.IDLF.org



The International Data Law Association presents its first Annual International Data Law Forum (IDLF). Focusing on global data laws and regulations, the Forum features a stellar faculty of European and US regulators and judges, along with leading legal, privacy, and technology practitioners.

This inaugural forum, fittingly in the Hague, covers a broad range of emerging data law and regulations affecting international data transfers and management.

SESSION HIGHLIGHTS

- Regulator Panels on Emerging Digital Legislation and Regulatory Priorities
- Global Approaches to AI Regulation, Governance and Compliance
- Hague Evidence Convention Developments
- Preserving International Mobile Device Data
- Managing Third-Party Cyber Risk
- Preserving Mobile Device Evidence for Cross-Border Litigation
- Best Practices for Managing Data in International Diversity and ESG Initiatives

SPONSORSHIP OPPORTUNITIES

GOLD | 15,000 USD
SILVER | 10,000 USD
BRONZE | 5,000 USD
Find additional details at www.IDLF.org

OUR MISSION

The International Data Law Association supports the International Data Law Forum (IDLF), an independent, non-partisan and nonprofit organization dedicated to promoting interest in and understanding of global data privacy laws and regulations with respect to cross-border data matters, including data protection, cyber security, information governance and e-discovery, by educating and facilitating conversations among regulators, judges, in-house counsel, practitioners, technologists and privacy professionals through in-person conferences and webinars.

WHY ATTEND IDLF

- Actionable, Practical Guidance on Cutting-Edge Global Data Issues
- Meet with Leading EU Regulators and Practitioners
- Valuable Connections and Peer Benchmarking
- Cyber Risk and Response Management
- CLE & CPE Credits (including Cyber, Diversity and Ethics) *(accreditation pending)*
- **Complimentary Registration for In-House Counsel through May 1, 2024** *(some restrictions may apply - see www.IDLF.org for details)*

REGISTRATION

995 USD | General
795 USD | Early Bird through May 1

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AGENDA | Day One

THURSDAY, 18 JULY

8:00 AM **Registration & Breakfast**

9:00 AM **Welcome & Opening Remarks**

9:10 AM **Opening Keynote**

9:30 AM **Ariadne's Thread: Operationalizing Emerging Overlapping Digital Legislations in Europe and Beyond**

Delve into the complexities of emerging global digital laws and regulatory frameworks, each with unique guidelines and requirements that often overlap. Panelists will explore both the intersections and interactions of the EU Digital Markets Act, Digital Services Act, European Data Act, and similar legislation in the UK and other countries in the global digital market. Panelists will examine the diverse risk assessment requirements of the various laws and the resulting variability in compliance obligations, and discuss best practices and strategies for adapting in this quickly-evolving regulatory landscape.

11:00 AM **Morning Break**

11:20 AM **Global Approaches to Artificial Intelligence Regulation**

An in-depth look at laws around the world regulating Artificial Intelligence (AI). Discussion will focus on the GDPR, EU AI Act, the US Executive Order on AI, US state privacy laws (including proposals from the California Privacy Protection Agency), Canadian and UK AI legislation. Panelists will highlight areas of convergence, and identify area conflict and divergence that can create traps for unwary multinational companies. The panel will discuss emerging best practices for compliance with the patchwork of regulations where questions still abound for compliance, technology and privacy professionals.

12:20 PM **Lunch Break**

1:30 PM **Focus on the Hague Evidence Convention**

The Hague Evidence Convention has the potential to help facilitate compliant cross-border discovery data flows. However, barriers to its use can seem overwhelming in the context of US discovery. This panel will outline important provisions of the Convention and provide practical guidance to help practitioners understand the interplay between the Convention and US discovery practice. In addition, attendees will hear from observers of the Special Commission meeting taking place in the Hague shortly before the Forum meeting.

2:30 PM **Beyond Scorecards: Measuring Success and Achieving Diversity in the Cross-Border Legal Team**

Corporations in the US committed to Diversity, Equity, and Inclusion (DEI) initiatives fueled by movements such as Black Lives Matter and #MeToo must now navigate an "anti-woke" affirmative action backlash that require new approaches and new metrics. At the same time, global unrest is breathing new life into old enmities and prejudices. In this volatile setting, legal departments are busy reviewing approaches and analyzing data points to understand workplace diversity where the very meaning of diversity doesn't translate universally. This panel explores issues and options for global approaches to building DEI initiatives into the corporate DNA, starting with its Legal Department.

3:30 PM **Afternoon Break**

3:45 PM **Third Party Cyber Events: Risk Mitigation from Contract Negotiation to Data Subject Notification**

Do you know where your data is? For many companies, their vendors represent a substantial cyber risk and managing this risk effectively is increasingly complex. This panel will provide contours for establishing a robust Third-Party Risk Management (TPRM) program for mitigating cyber risks, from contractual negotiation of relevant provisions such as notification and indemnification, to practical guidance on obtaining information from a third party experiencing a cyber event, through navigating regulatory and data subject notifications.

4:45 PM **Day One Closing Remarks**

5:00 PM **Reception**

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AGENDA | Day Two

FRIDAY, 19 JULY

8:00 AM Registration & Breakfast

9:00 AM Opening Remarks - Day Two

9:10 AM Keynote

9:30 AM Balancing Regulatory Realities: Priorities, Challenges, and Trust in the Spotlight

The Navigating Regulatory Realities Session is a fresh and innovative take on the traditional regulator panel as panelists embark on a thought-provoking journey into the dynamic landscape of regulatory priorities, challenges, a widening trust gap, and the mounting pressure to demonstrate action. In an era of rapidly-evolving regulations, regulatory bodies, like those they regulate, face an array of demands that require nuanced strategies and collaborative approaches. This panel brings together representatives from international regulatory bodies to provide valuable insights into the multifaceted world of digital regulation.

11:00 AM Morning Break

11:20 AM Information Governance and Generative AI: Dealing Data Privacy and Protection

This panel explores the dynamic nature of AI and its place at the intersection of Information Governance with privacy and data protection principles and regulations. The touchstones of information governance are confidentiality, integrity, and access. Panelists consider what happens when generative AI touches — or even creates — corporate records.

12:20 PM Lunch Break

1:30 PM Navigating Mobile Device Preservation in International Contexts for U.S. Litigation

This panel delves into the challenges of preserving mobile device data from jurisdictions outside the US for US litigation. Panelists will discuss comparative legal frameworks, highlighting the variance in national data privacy and protection laws and criminal statutes, as well as technical issues posed by mobile technologies. Panelists will discuss balancing data minimization requirements with legal preservation obligations, offering practical guidance on threading that needle.

2:30 PM Corporate Compliance and ESG: From Voluntary to Mandatory to ... Subpoenas?

While ESG may largely have originated as a doing-well-by-doing-good corporate phenomenon, today the exercise is far from voluntary in many jurisdictions given regulations like the EU's Corporate Sustainability Reporting Directive or California's ESG reporting requirements. At the same time, corporations are also facing increasing government scrutiny as part of an anti-ESG backlash. This panel will address how global entities can navigate the complexity of these new regulations, while mitigating the risk of "greenwashing" claims and complying with competing — if not conflicting — regulatory and legislative inquiries.

3:30 PM Afternoon Break

3:45 PM The Lawyer Witness: An Ethical Minefield

Under US professional conduct rules, when a lawyer is a "necessary" witness at a trial, the lawyer and the lawyer's law firm may be disqualified from representing their client. Shocked? Many lawyers are when they encounter the intricacies of this rule without forward planning. But what is a "necessary" witness? Does the rule apply in pre-trial proceedings, in courtroom proceedings where there is no jury, or in arbitrations or administrative proceedings? This panel will address these questions in the context of cross-border disputes in what promises to be an eye-opening discussion.

4:45 PM Closing Remarks

5:00 PM Conclude

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Agenda Subject to Change